

Dharmendra Singh v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 30 January 2015 · WRIT - C No. 2662 of 2015 · **Writ disposed; relegated to Clause 7.10 State Forum**

HEADNOTE

A writ seeking to quash a recovery citation for electricity dues was disposed of on the licensee's plea of an alternative and efficacious remedy under Clause 7.10 of the Electricity Supply Code, 2005. If the consumer files before the State Forum within fifteen days, the Forum is to decide the case within one month of filing.

FACTUAL SUMMARY

Dharmendra Singh petitioned the Allahabad High Court to quash a recovery citation dated 13 November 2014 for Rs. two lakhs plus collection charges towards electricity dues. He said he had already applied for permanent disconnection, the connection had not been permanently disconnected, and he was not liable after that application. On 22 January 2015 the Court adjourned so the licensee's counsel could obtain instructions and produce the order behind the citation. On 30 January 2015 the licensee pointed to Clause 7.10 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum-route-for-billing-grievances

HOLDING

A writ challenging a recovery citation for electricity dues is disposed of because an alternative and efficacious remedy is available under Clause 7.10 of the Electricity Supply Code, 2005; if the consumer files his case before the State Forum within fifteen days, the Forum shall decide it within one month of filing. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

The Court accepted the licensee's plea that a recovery-citation dispute over electricity dues must go to the State Forum under Clause 7.10, and time-bound the Forum if the consumer files within fifteen days. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONSUMER REMAINED LIABLE FOR ELECTRICITY DUES AFTER APPLYING FOR PERMANENT DISCONNECTION

The Court did not examine the disconnection application or post-application liability. ¶ 1

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 13.11.2014 AND THE ORDER PURSUANT TO WHICH IT ISSUED

The 22.1.2015 listing had called for that underlying order; the disposing bench did not decide the citation on merits. ¶ 1